

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William MacLure	Team: Squad #06	CCRB Case #: 201904350	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 05/13/2019 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/30/2021	Precinct: 30
Date/Time CV Reported Mon, 05/13/2019 7:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/20/2019 11:10 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Avery Jennings	28198	944092	030 PCT
2. POM Robert Davila	15863	963945	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Davila	Force: Police Officer Robert Davila used physical force against § 87(2)(b)	A . Complainant Unavailable
B . POM Avery Jennings	Force: Police Officer Avery Jennings used physical force against § 87(2)(b)	B . Complainant Unavailable

Case Summary

On May 13, 2019, § 87(2)(b) complained to Sgt. Robin Taveras, of the 30th Precinct, who reported this complaint with IAB over the phone. This case was received at the CCRB on May 20, 2019. § 87(2)(g)

The only phone number and address reported for § 87(2)(b) were those of his mother, § 87(2)(b). On May 24, 2019 and June 4, 2019, a call was placed to § 87(2)(b) and when asked to speak with § 87(2)(b) she stated he did not live with her anymore and disengaged the call. A call was immediately placed to § 87(2)(b) but she did not answer and there was no ability to leave a voice message because the mailbox was full. On May 31, 2019, a call was placed to § 87(2)(b) and there was no answer. No voice message could be left because the mail box was full. On June 10, 2019, a call was placed to § 87(2)(b) who stated that § 87(2)(b) did not live with her anymore, but agreed to obtain contact information for him. On June 13, 2019, a call was placed to § 87(2)(b) who stated that § 87(2)(b) had not been in contact with her since their dispute that prompted this incident. § 87(2)(b) believed that § 87(2)(b) went to Syracuse, New York, but did not know where he was staying and had no contact information for him. § 87(2)(b) agreed to tell § 87(2)(b) to call the CCRB if she heard from him. On July 9, 2019, a call was placed to § 87(2)(b) and she stated that she had not heard from § 87(2)(b). § 87(2)(b) had no new information about § 87(2)(b)'s whereabouts or contact information.

Between May 24, 2019 through June 28, 2019, three letters were sent to the address located on the Domestic Incident Report for § 87(2)(b). A search of CLEAR and LexisNexis databases yielded four possible addresses for § 87(2)(b). One of the addresses was in Syracuse, New York. On June 28, 2019, letters were sent to all four addresses asking § 87(2)(b) to call. A search of the Department of Motor Vehicles database yielded one additional address for § 87(2)(b) in Syracuse New York. On July 11, 2019, a letter was sent to § 87(2)(b) at the address from DMV. As of July 17, 2019, none of the letters were returned to sender by the US Postal Service.

A search of the NYC Department of Corrections database on July 9, 2019, yielded negative results for § 87(2)(b). A search of CTS on yielded no duplicate complaints, past complaints, or open complaints involving § 87(2)(b).

To date, § 87(2)(b) has not contacted the CCRB regarding this case. § 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **complainant unavailable**.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date